

Court No. - 2

Case :- WRIT - C No. - 38584 of 2009

Petitioner :- Ram Kishun And Another

Respondent :- State Of U.P. And Others

Petitioner Counsel :- J.B. Kesharwani,S.B. Vaish

Respondent Counsel :- C.S.C.,H.P. Dube

Hon'ble Ashok Bhushan,J.

Hon'ble Ram Autar Singh,J.

Heard Shri H.P. Dube, learned counsel for the respondents

By means of this petition, the petitioner has prayed for mandamus commanding the respondents to grant the electricity connection to the petitioner under the head of full deposit work only 15% Supervision charge Deposit base to run the private tube well.

Learned counsel for the respondents submits that according to provision of 4.6(e) of the U.P. Electricity Supply Code 2005, it is open for the petitioner to make an application. He further submits that no proper application has been made by the petitioner as per the para 4.6 (e) of the supply code.

In view of the facts and circumstances of the case, no useful purpose will be served in keeping the writ petition pending and calling for a counter affidavit

It is open for the petitioner to make proper application in accordance with the provision 4.6 (e) of the U.P. Electricity Supply Code 2005 which shall be considered by the respondent.

With the above observation, the writ petition is disposed of finally.

Order Date :- 19.8.2009

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